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THE PLANTS (IMPORTATION AND EXPORTATION) LAW
(29 OF 1983)
(1997 Revision)

Revised under the authority of the Law Revision Law (19 of 1975).

Originally enacted-

Law 29 of 1983-22nd November, 1983.

Revised this 9th day of December, 1997.

PLANTS (IMPORTATION AND EXPORTATION) LAW

(1997 Revision)

ARRANGEMENT OF SECTIONS

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PLANTS (IMPORTATION AND EXPORTATION) LAW

(1997 Revision)

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| 1. This Law may be cited as the Plants (Importation and Exportation) Law (1997 Revision). | Short title |
| 2. In this Law - | Definitions |
| “C.A.V.O.” means the Chief Agricultural and Veterinary Officer and any person authorised by him; and | |
| “plant” includes any growing plant, cutting, bud, graft, bulb, root or seed, and also any fruit or vegetable intended for propagation or for consumption as food. | |
| 3. Any person who, without the written permission of the C.A.V.O., imports into or exports from the Islands any plant is guilty of an offence. | No importation or exportation without permission |
| 4. The C.A.V.O. may, in granting the permission referred to in section 3, prescribe conditions upon which the importation or exportation is permitted, and any person who contravenes any such condition is guilty of an offence. | Power to prescribe conditions |
| 5. The C.A.V.O. may, at any time in writing, direct that any plant imported into the Islands without the permission required by section 3 or any plant with respect to which any condition prescribed under section 4 has not been complied with to his satisfaction be destroyed. | Power to order destruction |
| 6. The Governor in Council may, when it has been certified by the C.A.V.O. that it is necessary for the prevention of the spread of disease to restrict or prohibit the importation or exportation of plants between the Islands, make regulations for that purpose. | Restriction or prohibition of inter-island movement |
| 7. The C.A.V.O., when accompanied by an officer of the Royal Cayman Islands Police Force of the rank of Sergeant or over, may, for the purpose of carrying out a directive under section 5, and having obtained the prior written authority of a Justice of the Peace after such Justice of the Peace has been satisfied that it is fit and proper so to do, enter any place where such plant may be, and any person who assaults, obstructs, hinders or resists, or aids or incites any other person to assault, obstruct, hinder or resist any person acting under this section, is guilty of an offence. | Obstruction, etc., an offence |

Plants (Importation and Exportation) Law (1997 Revision)

Import or export only through certain ports	8. Any person who imports into or exports from the Islands any plant, other than through- (a) in Grand Cayman, the port of George Town or Owen Roberts International Airport; or (b) in Cayman Brac, the port of Creek or Gerrard Smith Airport, is guilty of an offence.
Penalty	9. Whoever is guilty of an offence is liable on summary conviction to a fine of one thousand dollars and to imprisonment for one year.
Regulations	10. The Governor in Council may make regulations for carrying this Law into effect.

Publication in revised form authorised by the Governor in Council this 9th day of December, 1997.

Carmena H. Parsons

Clerk of Executive Council